



St. Vrain Valley
Community Watchdogs
neighbors united for clean air

P O Box 82/Hygiene/CO 80533-0082
online at www.stvrainwatchdogs.org

Permit #: M-1977-208 Confidential?: N
Class: General Exc's Type-Seq.:
From: St. Vrain Valley To: DMG
Doc. Name: Info. regarding Boulder County CKD
Doc. Date (if no date stamp): 10-15-02 Inspection

RECEIVED

OCT 15 2002

Division of Minerals and Geology

October 8, 2002

Ms. Erica Crosby
Environmental Protection Specialist
Division of Minerals and Geology
Department of Natural Resources
1313 Sherman Street, Room 215
Denver, Colorado 80203

Dear Ms. Crosby,

Thank you for your inspection report of September 5, 2002. Please keep the Watchdogs informed regarding the DMG's progress in the bonding for the cement kiln demolition and disposal.

Less than a month after the DMG inspection, Ms. Gabi Hoefler and Ms. Pamela Milmoie, Boulder County Health Department, conducted an unannounced "Complaint Investigation for Fugitive Dust" on September 30, 2002 at Cemex-Lyons. A copy of this investigation is enclosed.

The last several months have been a back slide. Plumes are still present from the CKD disposal pit and from the factory complex. The investigation by Ms. Hoefler and Ms. Milmoie confirms our suspicions that housekeeping problems are still issues. The improper handling of materials in the clinker pit; and the lack of compliance for cleaning up piles of dust noted in previous inspections may well have been the source of the recent plumes blowing off the company's property into the community.

This week, three plumes were reported to the Boulder County Health Department and to Cemex-Lyons on October 6, 2002. The compliance manager at the facility seeks refuge behind the 30 mph regulation. The community; however, has no refuge from Portland cement dust blowing in the wind.

One of the problems with this industry coming into compliance with an effective fugitive dust control plan could be that most inspections are "announced," which gives the plant time to clean up their housekeeping problems before the inspectors come.

The St. Vrain Watchdogs have been stewards of this area for several years out of necessity not choice. No one from the county or the State is within visibility of this plant to directly see these dust events, so we continue to have to alert government officials such as you. We would rather be living our lives in the peace and beauty of this gem of a valley. We hope that the practice of giving this company advance notice that an

inspection will be occurring will shift. That practice allows time to "clean up their act" temporarily in order to stay in compliance and may delude regulators as to what is really the case. Until Ms. Hoefler and Ms. Milmoie made their unannounced inspection, they had no direct knowledge as to what we have been subject to here.

Many citizens have put in thousands of unpaid hours on this industry alone, and we still don't have containment of what we consider a hazardous and dangerous material spewing out of Cemex-Lyons. E. M. Forester once offered his countrymen words we might heed:

If you desire to save the countryside there is only one way;
through good laws rightly applied... That is your only hope. A
little has already been done: much more can be done in the future.
It needs men and women of good will who can continue and work
together lest destruction spread and cover the fields and the hills.

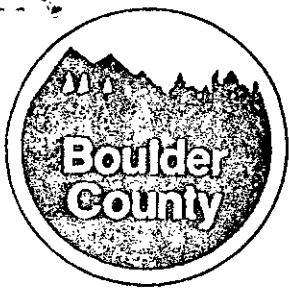
Thanks for your prompt responses and your continuing attention to this matter.

Sincerely,

Richard Cargill
Executive Director
St. Vrain Valley Community Watchdogs

Enclosure: Complaint Investigation for Fugitive Dust, BCHD

Cc: Mr. Bruce Humphries, Minerals Program Supervisor
Mr. Carl Mount, Senior Environmental Protection Specialist, DMG
Ms. Beth Versaw, President, Boulder County Board of Health
Mr. Chuck Stout, Executive Director, BCHD
Ms. Pamela Milmoie, Air Quality/Pollution Prevention Coordinator, BCHD
Ms. Gabi Hoefler, Environmental Health Specialist, BCHD
Boulder County Commissioners, Jana Mendez, Paul Danish, Ron Stewart
Mr. G. Billingsley, Director, Boulder County Land Use Department
Mr. Richard Long, Director, Air and Radiation Program, USEPA, Region 8
Ms. Jane Norton, Executive Director, CDPHE
Ms. Margie Perkins, Division Director, Air Pollution Control Division, CDPHE
Mr. Quimette, Manager, Stationary Sources Program, CDPHE
Mr. Jorgenson, APCD, CDPHE
Ms. Shannon McMillan, CDPHE, Air Pollution Control Division
Representative Todd Saliman, District 11
Representative Mark Udall
Mr. Doug Lempke, Administrator, Colorado Air Quality Control Commission
Mr. Kirk Cunningham, Sierra Club, Boulder County
American Lung Association
Mr. Gilberto Perez, Cemex, President of U.S. Operations
EPA - Washington, D.C., Docket RCRA - 1999-0011



Health Department

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October 1, 2002

Steve Mossberg
Facility Compliance Manager
Cemex, Inc.
P.O. Box 529, Lyons, CO 80540

Re: Complaint Investigation for Fugitive Dust

Dear Mr. Mossberg,

This letter is in response to a complaint investigation conducted at the Cemex Lyons Plant on September 30, 2002 by myself and Pam Milmoie, Air & Waste Coordinator for Boulder County Health. At the time of the inspection, skies were clear and winds were approximately 20-30 mph. A number of areas observed could pose fugitive dust problems. The following sources of fugitive dust were noted during the inspection:

1. The A-frame storage building has excess dust on the roof and piled-up clinker dust around it that should be covered or removed.
2. The Clinker Pit had fugitive dust emissions in excess of 20% due to improper handling by the loader operator. The Clinker Pit should be unloaded on a set schedule rather than using the presence of dust as an indicator for removal.
3. The haul road behind the A-Frame was particularly dusty and should be watered frequently or treated with dust suppressant.
4. Piles of dust were noted under the conveyor belt at the south end of the plant, just before reaching the stacker. This source of potential fugitive emissions has been identified in previous inspections and should be removed daily.
5. Material stockpiles could be a potential source of fugitive emissions during high winds. It was suggested that the plant find a way to water the top of the piles, possibly running the conveyor belt periodically to mist the piles with the automatic mister.

The Boulder County Health Department is requesting a written response by October 8, 2002, demonstrating how and when these issues will be corrected. A follow-up visit will be made to insure the above items are corrected. Feel free to call me to with any questions or concern at 303-441-1147.

Sincerely,


Gabi Hoefler

Boulder County Health Department

CC: Bob Jorgenson, CDPHE, Air Pollution Control Division
Shannon McMillan, CDPHE, Air Pollution Control Division
Richard Cargill